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Data Processing Agreement

Reference DPA-2026-01 · Version 1.0 · Made 13 October 2026

This Data Processing Agreement ("Agreement") is made on 13 October 2026 between:

(1) **HGS Business & Enterprise Academy**, **of**

Business & Enterprise Department, Hertfordshi

Address line 2 (optional)

(the **"School"** — the data controller); and

(2) **gcsebusiness**, operator of the gcse.business platform, hello@gcsebusiness.co.uk (**"gcsebusiness"**, **"we"** — the data processor).

1. Purpose and roles

The School provides gcsebusiness to its staff and students. Under Article 28 of the UK GDPR, the School is the controller of the student personal data processed through the platform and gcsebusiness is the processor. Where gcsebusiness contracts directly with a teacher (the teacher-account relationship), gcsebusiness is the controller for that account data and its Privacy Policy applies.

2. Details of processing

Data subjects	Students of the School; staff of the School.
Categories of personal data	Usernames, display names, login credentials, class membership, quiz answers and written work, marks and mark-scheme breakdowns, progress and attainment records, feedback and notifications.
Purposes of processing	Operating the platform for the School — accounts, quiz delivery, marking (including AI marking), reporting and analytics.
Duration	The licence term, ending 30 days after expiry or termination.

3. Processor obligations

gcsebusiness shall:

- **3.1** process personal data only on the School's documented instructions (this Agreement and the platform's normal operation), and inform the School if an instruction appears to breach the UK GDPR;

- **3.2** ensure that everyone with access to the data is bound by confidentiality;
- **3.3** implement the technical and organisational measures in §5;
- **3.4** not engage another processor without the School's authorisation (see §4);
- **3.5** assist the School with data-subject requests and with its duties on security, breaches and prior consultations;
- **3.6** notify the School without undue delay — and in any event within 24 hours of becoming aware — of a personal-data breach, with enough detail for the School to meet its own reporting duties to the ICO;
- **3.7** delete or return all student personal data within 30 days of the end of the licence, unless retention is required by law;
- **3.8** make available the information needed to demonstrate compliance and allow the School (or its auditor) reasonable access to evidence.

4. Sub-processors

Provider	Role	Personal data they see
Google LLC (Firebase)	EU-hosted database (europe-west1)	All platform data, as hosting provider.
Google LLC (Gemini)	AI marking & feedback	Question, mark scheme and answer text only.
Groq Inc.	AI marking & feedback	Question, mark scheme and answer text only.
Zhipu AI (Z.ai)	AI marking & feedback	Question, mark scheme and answer text only.

The School gives general authorisation to this list. gcsebusiness will give at least 14 days' notice of any change, and the School may object and terminate the licence for cause.

5. Security measures (UK GDPR Article 32)

- TLS 1.2 or higher on every connection.
- Salted scrypt hashing for teacher passwords.
- AES-256-GCM encryption for teacher-recoverable student logins.
- HMAC-SHA-256-signed, httpOnly session cookies.
- Server-side authorisation checks on every API request, backed by database security rules.
- Least-privilege access (single operator); no student data held on local devices or in print.

6. International transfers

The primary database stays in the EU (europe-west1). Where an AI sub-processor processes the limited content described in §4 outside the UK or EEA, transfers rely on appropriate safeguards such as the UK IDTA or the Addendum to the EU

Standard Contractual Clauses — and only the minimum content is ever transferred.

7. US schools — FERPA

Where the School is subject to the US Family Educational Rights and Privacy Act (FERPA), the parties agree that gcsebusiness acts as a “school official” with a legitimate educational interest: it performs a service the School would otherwise perform for itself, is under the School’s direct control as to the use and maintenance of education records, and will not disclose personally identifiable information from education records without the School’s authorisation unless legally required.

8. Term, termination and precedence

This Agreement lasts for the licence term plus the deletion period in §3.7. Clauses 3.7, 3.8 and 6 survive termination. If this Agreement conflicts with the Terms of Service, this Agreement prevails on data-protection matters.

9. Signatures

Signed for the School — HGS Business & Enterprise Academy

_____

Signature

_____

Name & position

_____

Date

Signed for gcsebusiness

_____

Signature

_____

Name & position

_____

Date